

HOUSE BILL 1074

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 56
and Title 63, Chapter 1, relative to prior
authorization for healthcare services.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-1-171, is amended by deleting subsection (b) and substituting:

(b) Except as provided in subsection (d), a provider shall notify a patient of communication between the provider and the patient's health insurance entity if the provider contacts the health insurance entity seeking additional information needed to process a prior authorization request for the patient within seven (7) calendar days after the communication has occurred. The notification must include a copy of the communication.

SECTION 2. Tennessee Code Annotated, Section 56-6-705(a), is amended by deleting subdivision (4) and substituting:

(4) If a utilization review organization makes a request of the healthcare provider that additional information is needed to process a prior authorization and the healthcare provider does not submit the additional information within the seven-calendar-day timeframe described under subsection (a), then the utilization review organization must notify the enrollee that further information has been requested from the provider. The notification must include a copy of the communication.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.